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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
Carbone, Smith & Koyama, LLP;
Michael R. Chambers;
Phillips, Spallas & Angstadt LLP;
Priya D. Navaratnasingham;
Alberto Reyna;
and DOES 1 through 20, inclusive;
DEFENDANTS

Case No.: CGC-25-631801
(Related: CGC-21-594102)

I,

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO
IN SUPPORT OF MOTION FOR LEAVE
TO FILE
THIRD AMENDED COMPLAINT**

FRANCISCUS DYLAN ROSARIO, declare as follows:

1. PERSONAL KNOWLEDGE

1. I am the Plaintiff in this action. I have personal knowledge of the facts stated herein, except as to matters stated on information and belief, and as to those matters, I believe them to be true. If called as a witness, I could and would competently testify to the following.
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1 **2. PROCEDURAL BACKGROUND**

- 2 2. On **December 23, 2025**, I filed the original Complaint in this action, asserting claims for
3 extrinsic fraud and equitable relief arising from the judgment entered against me in Case
4 No. CGC-21-594102 (the “underlying action”).
- 5 3. On **February 25, 2026**, I filed the First Amended Complaint to address procedural issues and
6 refine certain allegations.
- 7 4. On **April 22, 2026**, Defendants filed a Motion to Strike under Code of Civil Procedure § 436,
8 raising eight objections to the operative complaint.
- 9

10 **3. RESPONSE TO MOTION TO STRIKE**

- 11 5. After reviewing Defendants’ Motion to Strike, I determined that certain amendments to the
12 complaint would address the objections raised while preserving the substance of my claims.
- 13 6. I have prepared the proposed Third Amended Complaint (“TAC”) attached hereto as Exhibit
14 A. The TAC is not intended to change the fundamental nature of my claims, but rather to
15 plead them with greater specificity and clarity in response to Defendants’ objections.
- 16 7. The TAC addresses each of Defendants’ eight objections, as set forth in the Memorandum of
17 Points and Authorities and the Cure Matrix filed herewith.
- 18

19 **4. UNDERLYING FACTS — THE COLLISION AND INITIAL CLAIM**

- 20 8. On **February 4, 2021**, I was involved in a motor vehicle collision in San Francisco with Subhi
21 Abdelhalim, CSAA’s insured.
- 22 9. On **February 25, 2021**, just 21 days after the collision, CSAA issued a denial letter for Claim
23 No. **1004-09-1054**, signed by **Sarah Rash**, Claims Representative. This precipitous denial
24 was issued before any meaningful investigation could have been completed.
- 25 10. I subsequently filed the underlying personal injury action, Rosario v. Abdelhalim, Case
26 No. CGC-21-594102, in this Court.
- 27

5. THE 893-DAY CONCEALMENT

11. On **August 18, 2022**, the 911 audio recording was served on defense counsel (Michael R. Chambers of Carbone, Smith & Koyama, LLP) by my prior attorney (Dolan Law Firm). On that same date, my deposition was taken with Chambers present.
12. On **September 30, 2022**, Defendant Abdelhalim was deposed with Chambers present. Abdelhalim gave sworn testimony regarding placing the 911 call.
13. During the period from August 2022 through January 2025—a period of **893 days**—defense counsel never raised any objection, challenge, or concern regarding the authenticity, provenance, or receipt of the 911 audio, body-worn camera footage, or CAD logs. No motion to compel was filed. No meet-and-confer letter was served challenging authenticity.
14. On **May 4, 2023**, the Substitution of Attorney was filed, transferring the defense file from Chambers/CSK to Phillips, Spallas & Angstadt, LLP (PSA). On information and belief, the production history for the 911/BWC/CAD materials was not conveyed to successor counsel.

6. THE FEBRUARY 28, 2025 JUDICIAL RELIANCE

15. On **February 28, 2025**, the Court articulated its reliance on defense counsel’s officer-of-the-court status in the following exchange:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.
16. Based on this reliance, the Court issued multiple rulings that limited my ability to present critical evidence, including:
 - Denial of MIL No. 1 (Jan. 27, 2025);
 - Exclusion of 911 CDs (Jan. 27, 2025);
 - Categorical exclusion of 911 transcripts (Jan. 27, 2025);

- Denial of continuance (Feb. 18, 2025);
 - Rejection of § 473 “surprise” relief (Feb. 18, 2025);
 - Burden-shift ruling (Feb. 28, 2025);
 - Exclusion of supplemental police report (Apr. 16, 2025).
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7. THE APRIL 16, 2025 ADMISSION

17. On **April 16, 2025** (Trial Day 7), defense counsel **Priya D. Navaratnasingham** made the following statement on the certified record:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, April 16, 2025, RT 7, p. 213, ll. 13–15.

18. This admission—that the materials came from Dolan Law Firm (the same source as the 911 audio in Jessup’s testimony)—directly contradicts:

- The February 18, 2025 “news to me” denial (Hr’g Tr. p. 141, ll. 4–11);
- MIL No. 17’s assertion that “Defendant has no idea where this 911 call log or audio recording came from.”

19. This admission is the operational linchpin of my fraud claim. It proves that the prior denials were false and that defense counsel had possessed the materials throughout.

8. GOOD FAITH

20. I am filing this motion in good faith. I genuinely believe that the claims asserted in the TAC are meritorious and supported by the certified record.

21. I am not filing this motion for purposes of delay or harassment. I seek leave to amend so that my claims may be adjudicated on their merits.

9. NO PREJUDICE TO DEFENDANTS

22. To the best of my knowledge, granting leave to amend will not prejudice Defendants:

- (a) The TAC does not add any new parties beyond those already named (with corrected identifi-

1 cation of the defense firms and individual attorneys).

2 (b) The TAC does not assert fundamentally new theories of liability.

3 (c) No additional discovery should be necessary as a result of the amendments—the TAC is based
4 on the certified record already in Defendants’ possession.

5 (d) The case is at an early stage.

6 _____
7 **10. CONCLUSION**

8 23. I respectfully request that this Court grant leave to file the Third Amended Complaint so that
9 my claims may be adjudicated on their merits.

10 _____
11 I declare under penalty of perjury under the laws of the State of California that the foregoing is
12 true and correct.

13 Executed on _____ at _____, California.

14 _____
15 FRANCISCUS DYLAN ROSARIO

